

Award
FINRA Dispute Resolution Services

In the Matter of the Arbitration Between:

Claimant
Stephen Ferguson

Case Number: 25-01200

vs.

Respondents
Interactive Brokers LLC and Interactive Brokers Corp.

Hearing Site: Cincinnati, Ohio

Awards are rendered by independent arbitrators who are chosen by the parties to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Customer vs. Members

This matter proceeded pursuant to Rule 12800 of the Code of Arbitration Procedure (“Code”). The Claimant did not request a hearing.

REPRESENTATION OF PARTIES

Claimant Stephen Ferguson (“Claimant”) appeared pro se.

For Respondents Interactive Brokers LLC (“IBL”) and Interactive Brokers Corp. (“IBC”), hereinafter, collectively, “Respondents”: Jason O. Billy, Esq., Interactive Brokers LLC, Washington, District of Columbia.

CASE INFORMATION

Statement of Claim filed on or about: June 10, 2025.
Claimant signed the Submission Agreement: June 10, 2025.

Statement of Answer filed by Respondents on or about: August 1, 2025.
IBL signed the Submission Agreement: August 1, 2025.
IBC signed the Submission Agreement: August 5, 2025.

CASE SUMMARY

In the Statement of Claim, Claimant asserted that IBL’s failure to accurately report the cost basis of a securities transaction within its Tax Optimizer platform resulted in a material financial loss to his account and it remains to be solved. Claimant’s complaint involves 100 shares of Alexandria Real Estate Equities, Inc. (“ARE”).

Unless specifically admitted in the Statement of Answer, Respondents denied the allegations made in the Statement of Claim and asserted various affirmative defenses.

RELIEF REQUESTED

In the Statement of Claim, Claimant requested \$3,235.17 in compensatory damages, plus costs associated with pursuing this arbitration, including fees and any related expenses.

In the Statement of Answer, Respondents requested that Claimant's claims be denied and such additional relief as the Arbitrator deems just and proper.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrator acknowledges having read the pleadings and other materials filed by the parties.

AWARD

After considering the pleadings, the Arbitrator has decided and determined in full and final resolution of the issues submitted for determination as follows:

1. Claimant's claims are denied in their entirety.
2. Nothing in this Award shall prevent Claimant from requesting Respondent to change the tax lot assigned for the sale of 100 shares of ARE on May 19, 2025, because of confusion by Claimant on how Respondent's system worked. However, it is completely in the discretion of Respondent of whether to do this or not. Respondent's response to any such request shall be final and binding.
3. FINRA Dispute Resolution Services shall retain the \$175.00 filing fee that Claimant deposited previously.
4. Any and all claims for relief not specifically addressed herein are denied.

FEES

Pursuant to the Code:

Respondents have each paid to FINRA Dispute Resolution Services the \$165.00 Member Surcharge Fee previously invoiced.

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATOR

Julius Z. Frager

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Sole Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Arbitrator's Signature

Julius Z. Frager

Julius Z. Frager
Sole Public Arbitrator

11/06/2025

Signature Date

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November 06, 2025

Date of Service (For FINRA Dispute Resolution Services use only)